



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing seven judgments on Tuesday 6 November 2018 and 57 judgments and / or decisions on Thursday 8 November 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 6 November 2018

[K.G. v. Belgium \(application no. 52548/15\)](#)

The applicant, K.G., is a Sri Lankan national who was born in 1990 and lives in Jaffna (Sri Lanka).

The case concerns an asylum-seeker (K.G.) who was placed and kept in detention under four decisions, for security reasons, while his asylum application was pending.

In October 2009 K.G. arrived in Belgium. He lodged eight asylum applications, alleging that he had been subjected to torture in Sri Lanka on account of belonging to the Tamil minority. His requests were rejected. He was issued with a number of orders to leave Belgium but did not comply.

In January 2011 he was sentenced to 18 months' imprisonment, of which one year was suspended, for the offence of indecent assault committed with violence or threats against a minor under 16. He was released in February 2011.

In October 2014 K.G. was notified that he was banned from entering Belgium for six years on the grounds that he constituted a serious threat to public order. The decision of the Aliens Office referred, among other points, to his conviction, to police reports from 2012 and 2014 showing he had committed the offences of assault, shop-lifting, and contact with minors, and also to the orders to leave Belgium with which he had not complied. He was then placed in a detention centre for illegal migrants in Vottem until August 2015, when he was transferred to detention centre 127bis at Steenokkerzeel, where he remained until he was removed on 27 March 2016.

Relying on Article 5 § 1 (right to liberty and security) of the European Convention on Human Rights, K.G. complains about his detention.

[Milićević v. Montenegro \(no. 27821/16\)](#)

The applicant, Zdravko Milićević, is a Montenegrin national who was born in 1966 and lives in Podgorica.

The case concerns his complaint that the State failed to protect him from an attack by a mentally ill person.

In February 2013 an individual, X, attacked Mr Milićević inside his coffee bar with a hammer. He was taken to hospital with a head injury.

X was arrested, prosecuted for violent behaviour against Mr Milićević and ordered to have mandatory psychiatric treatment in a hospital. At the same time he was found guilty of stabbing another man, causing him light bodily injuries, four months before the attack on Mr Milićević.

Mr Milićević instituted civil proceedings for compensation, submitting that he had reported X to the police for threatening him a few days before the attack and that he had already attacked others. The

courts ruled against him in 2015, finding that the police had acted as required and that the State was not liable for any damage.

During both sets of proceedings, it transpired that X suffered from schizophrenia and was a long-term psychiatric patient. The courts noted that he had a history of violent behaviour, which included attacking his neighbours and setting his flat on fire. A policeman also confirmed in court that he “knew that X always carried a knife” and that the police often had complaints about him.

X was allowed to start outpatient treatment in November 2015. Since April 2016 he has been having regular monthly check-ups with a specialist.

The Court will examine his complaint that the State failed to prevent the attack on him, despite the police being aware of the risk X posed, under Article 8 (right to respect for private and family life).

[Just satisfaction](#)

[Tomina and Others v. Russia \(nos. 20578/08, 21159/08, 22903/08, 24519/08, 24728/08, 25084/08, 25558/08, 25559/08, 27555/08, 27568/08, 28031/08, 30511/08, 31038/08, 45120/08, 45124/08, 45131/08, 45133/08, 45141/08, 45167/08, and 45173/08\)](#)

The case concerns the question of just satisfaction with regard to the applicants’ loss of ownership of rooms that they had purchased, which had originally been the property of the State. The applicants are 21 Russian nationals born between 1949 and 2006.

In its principal judgment of 1 December 2016 the Court held that there had been a violation of Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights. It awarded 5,000 euros in respect of non-pecuniary damage to applicants in 19 applications.

As concerned pecuniary damage, the Court held in respect of 19 of the applications that Russia should ensure, by appropriate means, the full restoration of title to the rooms. However, it held that the question of pecuniary damage as regards the remaining application (no. 45173/08) was not ready for decision and reserved it for examination at a later date.

The Court will deal with this question in its judgment of 6 November 2018.

[Otegi Mondragon and Others v. Spain \(nos. 4184/15, 4317/15, 4323/15, 5028/15, and 5053/15\)](#)

The applicants, Arnaldo Otegi Mondragón, Jacinto García, Díez Usabiaga, Zabaleta Tellería and Rodríguez Torres, are Spanish nationals who were born in 1958, 1977, 1956, 1981, and 1979.

The case concerns their complaint of bias on the part of judges who convicted them for being members of the ETA organisation.

In March 2010 the first applicant was convicted of the crime of encouraging terrorism by a three-judge panel. He challenged the verdict, alleging that the presiding judge was biased because of a remark she had made about his refusal to answer her question about violence by ETA, the former armed Basque separatist organisation.

The Supreme Court overruled his conviction owing to a lack of impartiality on the part of the presiding judge. He was later acquitted by another panel of the same first-instance court.

All five applicants faced different criminal proceedings on charges of being members of ETA. The case was allocated to the same first-instance court panel which had originally convicted Mr Otegi Mondragón. He challenged the panel over doubts about its impartiality, but a special chamber of the first-instance court dismissed his action. The first-instance court convicted them in 2011. They lodged cassation appeals, two applicants arguing in particular that the court panel was not impartial.

In May 2012 the Supreme Court partially upheld their appeal in a 3 to 2 decision and reduced their sentences, however, it found that the presiding judge’s lack of impartiality in Mr Otegi Mondragón’s

2010 proceedings did not mean that she or the other judges had also been biased in the five applicants' case.

The applicants appealed to the Constitutional Court, four of them again alleging bias. In a 7-5 judgment in 2014 the Constitutional Court rejected those claims. It found no justification to doubt the impartiality of the judge who had presided in the first case and was on the panel in the second case. The earlier concerns about her had also been raised in connection with different charges.

Relying on Article 6 § 1 (right to a fair trial / hearing), the applicants complain that the first-instance court panel which convicted them lacked impartiality.

[Vicent Del Campo v. Spain \(no. 25527/13\)](#)

The applicant, Fernando Vicent Del Campo, is a Spanish national who was born in 1957 and lives in Villavente (León) (Spain).

The case concerns his complaint about his right to reputation being undermined by a domestic court judgment which named him as having harassed a work colleague, although he was not a party to the proceedings. The defendant in the case was his local authority employer.

While working in the León School of Arts and Crafts as a teacher and head of department, Mr Vicent Del Campo was accused of harassment by a colleague. An administrative complaint by the colleague was initially dismissed and she filed a claim for compensation with the regional Department of Education. Given a lack of response by the authorities the colleague began court proceedings in January 2007.

In November 2011 the High Court of Justice of Castilla-León found against the Regional Administration and ordered it to pay compensation to the colleague. The court held that the public administration was liable as the colleague had suffered harassment and the education authority had not done anything to prevent it. The judgment included Mr Vicent Del Campo's name several times and said it had established that he had harassed and bullied his colleague.

In December 2011 Mr Vicent Del Campo requested access to the case file and to become a party to the proceedings, stating that he had learnt of the judgment through the local press. The domestic courts refused his request to be a party to the proceedings, stating that in such cases it was the public administration alone which was the defendant, even if a particular public official could be identified and his or her conduct judged. The Constitutional Court rejected a right of fair trial appeal by Mr Vicent Del Campo, finding it had not duly justified its constitutional significance.

Relying on Article 6 § 1 (access to court), Mr Vicent Del Campo complains about not being made a party to the strict liability proceedings despite having a direct interest in defending himself against serious allegations.

Relying on Article 8 (right to respect for private and family life) and Article 13 (right to an effective remedy), Mr Vicent Del Campo complains that the High Court judgment stating that he committed harassment, in proceedings in which he was not a party, amounted to an unjustified interference with his right to honour and reputation, and that he had no effective remedies available to him in that regard.

[Hakim Aka v. Turkey \(no. 62077/08\)](#)

The applicant, Hakim Aka, is a Turkish national who was born in 1970 and lives in Istanbul (Turkey).

The case concerns the applicant's complaint of a lack of an effective investigation into the death of his two sons.

Mr Aka's sons, Aykut and Aykan, born in 1991 and 1992, left their home to go to school on 19 November 2007, leaving their mobile telephones at home. The boys did not return to their house

and Mr Aka began a search for them. The following day he informed the police that they were missing, the police informed the Kartal public prosecutor and the authorities began an investigation.

On 23 November Aykan's body was pulled out of the sea. He was in his school uniform and had his rucksack on, which was full of stones. Mr Aka was questioned again on the same day and he gave the police various pieces of information, including that his son had received a text message in Arabic during the Muslim holiday of *bayram* (*eid*) and that he had found a note from Aykan in the boy's room. Among other things, the note stated that Aykan was to "die and become a martyr" on 13 December.

At Mr Aka's request the authorities carried out a search of the sea near where his son's body had been found and Aykut's body was subsequently pulled up, on 30 November. He was also in his school uniform with a rucksack full of stones attached to his body with a rope.

In February 2008 the public prosecutor decided not to prosecute over the deaths, effectively closing the cases. Mr Aka objected to the decisions, alleging that the prosecutor had not carried out an effective investigation and had failed to follow up on various leads, including his allegation that someone had also tried to kidnap his youngest son, Volkan, in February 2008. The assize court dismissed the applicant's objection in June 2008.

Relying in essence on Article 2 (right to life), Mr Aka complains that the investigation into his sons' deaths was not effective.

[Burlya and Others v. Ukraine \(no. 3289/10\)](#)

The applicants are 19 Ukrainian nationals of Roma ethnicity born between 1936 and 1980. They currently live in the Odessa Region.

The case concerns the applicants' allegation that they were forced to flee their homes in Petrivka, a village in the Odessa Region, following warnings of an anti-Roma attack.

On 7 September 2002, a 17-year-old ethnic Ukrainian was murdered in Petrivka, allegedly by a Romany man. In response, a crowd of residents demanded the expulsion of all Roma from the village. At a meeting the following day, the local council agreed. Following intervention by the District Administration and police, the council, meeting again on 9 September, decided to ask law enforcement authorities to expel "socially dangerous individuals, regardless of ethnic origin".

That evening, the village mayor advised Roma residents to leave ahead of an impending "pogrom". A mob estimated at several hundred people subsequently ransacked the applicants' homes and destroyed belongings that same night. Police officers were present during the attack but did not try to prevent the looting and apparently concentrated solely on preventing human casualties.

Most of the applicants were in the village during the build-up to the attack, between 7 and 9 September, although a small group had left beforehand and did not discover what had happened until their return afterwards.

Criminal proceedings were initiated immediately on 10 September over suspicion of disorderly conduct committed in a group. The investigation, led by a regional police investigator and involving local police, was suspended and reopened on a number of occasions before its definitive suspension in March 2009.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicants complain that the attack on their houses and the poor living conditions they experienced afterwards amounted to inhuman and degrading treatment. They argue that the State was responsible since, among other things, the authorities were complicit in the attack, failed to protect them from it and failed to investigate it effectively.

Relying on Article 8 (right to respect for private and family life and the home), the applicants complain that their homes were destroyed and they were forced to live in intolerable conditions. Relying on Article 14 (prohibition of discrimination), taken in conjunction with both Article 3 and Article 8, they complain that they suffered discrimination owing to their ethnic origin.

Relying on Article 1 of Protocol 1 (protection of property), the applicants complain that they were deprived of their possessions, both as a result of the damage to the contents of their homes and as a result of the damage to the properties themselves.

They also complain under Article 13 (right to an effective remedy) that they had no effective remedy in respect of their other complaints.

Thursday 8 November 2018

[Narodni List d.d. v. Croatia \(no. 2782/12\)](#)

The applicant, Narodni List D.D., is the publisher of a weekly magazine, *Narodni List*. Its office is based in Zadar (Croatia).

The case concerns the freedom of the press to criticise judges.

In 2010 the domestic courts found that an article published by the applicant was offensive and amounted to a gratuitous personal attack on a judge at Zadar County Court. The article, published in 2008, had criticised the judge for going to a party despite a potential conflict of interest and for issuing an unjustified search warrant of its premises.

The courts ordered the publisher to pay damages of 50,000 Croatian kunas (HRK) (some 6,870 euros).

Both its appeal to the Split County Court and a constitutional complaint were dismissed.

Relying on Article 10 (freedom of expression), the applicant publisher complains that the domestic court decisions finding that it had defamed a judge were not justified and that the level of damages it had been ordered to pay was excessive.

[Seražin v. Croatia \(no. 19120/15\)](#)

The applicant, Tomislav Seražin, is a Croatian national who was born in 1989 and lives in Zagreb.

The case concerns the measures used in Croatia to fight against hooliganism.

In August 2012 the Zagreb Minor Offences Court found Mr Seražin guilty of hooliganism for causing disorder at a Dinamo Zagreb football match. He was given a suspended sentence of 25 days in prison and, under section 32 of the Prevention of Disorder at Sports Events Act ("the Act"), was banned from attending Dinamo Zagreb matches for one year.

Over the next two years he was involved in several other hooliganism-related offences both in Croatia and abroad. In April 2014, the same minor offences court allowed a request by the police, under section 34 of the Act, to ban Mr Seražin from attending all matches involving Dinamo Zagreb and the Croatian national team.

Mr Seražin appealed, arguing that the imposition of the exclusion measure under section 34 had breached his right not to be tried and punished twice for the same offence because he had already been found guilty and sentenced for the same conduct in 2012.

The High Minor Offences Court dismissed his appeal. It found that the measure under section 32 was a sanction, while the measure under section 34 was preventive and based on information of previous unlawful conduct.

The courts similarly dismissed the applicant's appeal in another set of proceedings in 2015 to apply a second exclusion measure.

Relying on Article 4 of Protocol No. 7 (right not to be tried or punished twice), Mr Seražin complains that he was tried and punished twice for his conduct at the football match in 2012, first in the minor offence proceedings and then in the proceedings banning him from attending sports events.

[Agamemnon v. France \(no. 13483/14\)](#)

The applicant, Mr Casanova Agamemnon, is a French national who was born in 1950. He is currently held in a prison on Réunion Island.

The case concerns a request by the applicant to be transferred to a prison close to his family.

In October 1970 the Assize Court of Réunion Island sentenced Mr Agamemnon to life imprisonment for the murder of his employer. In May 1985 he was released on licence. In February 1986 he killed his brother. His release on licence was revoked, thus restoring his sentence of life imprisonment. In November 1988 he was transferred to Fresnes Prison and subsequently served his sentence in various prisons in mainland France: Lannemezan, Saint-Maur and Val-de-Reuil.

From 2003 onwards Mr Agamemnon on several occasions requested his relocation to Réunion. His requests were denied. On 23 July 2013, relying on Article 8 of the Convention, he lodged a compensation claim with the Minister of Justice, seeking 100,000 euros (EUR) for the damage that he claimed to have sustained as a result of the prison service's refusal to transfer him to a prison on Réunion.

After his dangerousness had been assessed and his request for release on licence denied, the prison service was again in a position to examine his transfer request.

On 11 October 2013, following the recommendations of the national assessment centre in Fresnes, the prison service took the decision to transfer Mr Agamemnon to Port prison on Réunion Island. He lodged a compensation claim with the Administrative Court seeking EUR 100,000 from the State, arguing that the authorities had breached his right to be held in a prison which allowed him to maintain his family ties, to be rehabilitated and to have his dignity respected. On 25 March 2014 Mr Agamemnon was transferred to Port. The Administrative Court rejected his compensation claim on the grounds, in particular, that he was single, with no dependants, and that he had not proved he had maintained a private and family life on Réunion Island. On 4 July 2017 the Administrative Court of Appeal upheld that judgment.

Relying on Article 8 (right to respect for private and family life), the applicant complains about the prison service's refusal to transfer him to a prison on Réunion Island.

[Hôpital Local Saint-Pierre D'Oléron and Others v. France \(nos. 18096/12, 53601/12, 23542/13, 32194/13, 39165/13, 39173/13, 39180/13, 39184/13, 49923/13, 57424/13, 58995/13, 59003/13, 68908/13, 68916/13, 68918/13, 76512/13, 76519/13, 76527/13, 76530/13, 5485/14, 23544/14, 30287/14, 46819/14, and 46862/14\)](#)

The applicants are housing facilities for dependent elderly people (known as "EHPADs"), hospitals including EHPADs, and an association running a centre for disabled people. The URSSAF is an authority which collects and distributes social security contributions, constituting the sources of financing of the ordinary social security regime. The case concerns a refusal by the URSSAF to reimburse the employer's share of the contributions paid in respect of the employees of the EHPADs, whereas the applicants had claimed that they were entitled to an exemption under the Social Security Code.

The applicant facilities all applied to the URSSAF for the reimbursement of the employer's share of the contributions paid in respect of their employees. They argued that they provided their residents with home help services which were exempt under Article L. 241-10 III of the Social Security Code.

The applicants observed that while the term "*domicile*" (home) was not used in that Article, it contained the preposition "*chez*" (at the place of), which in their view identified the place where the elderly person lived. In that light, the accommodation occupied by the EHPAD residents constituted their home. Having had their reimbursement claims dismissed, the applicants appealed to the social security courts. In the view of most of the first-instance and appellate courts, the exemption under Article L. 241-10 III could only apply to the salaries of employees who worked in an elderly person's private home and not to those of staff working in the EHPAD facilities, which were a form of collective housing not regarded as a person's home.

In December 2010, while the first appeal was pending before the Court of Cassation, the legislature enacted a law in which section 14 replaced the words "*chez les*" (at the place of the) by the words "*au domicile à usage privatif des*" (at the private home of) in the first paragraph of the relevant Article in the Code.

In the meantime, that law had been referred to the Constitutional Council by Members of Parliament, who took the view that section 14 of the Law of 20 December 2010, by excluding people who resided in a housing facility from the exemption, breached the principle of equality.

In December 2010 the Constitutional Council declared section 14 compatible with the Constitution on the grounds that the exemption of employer contributions sought to promote the possibility for dependent persons to remain in their own homes and that the linking of the exemption to the private nature of the home of the beneficiary of such assistance was thus directly connected to the purpose of that section of the law.

Relying on Article 6 § 1 (right to a fair hearing), the applicants complain that, by the enactment of the Law of 20 December 2010, the legislature intervened to change the outcome of the proceedings to which the State was a party, thus breaching the equality of arms principle. Under the same Article, some of the applicants complain about the lack of reasoning in the Court of Cassation's judgments of 22 September 2011 and 16 February 2012. Relying on Article 14 (prohibition of discrimination), taken together with Article 1 of Protocol No. 1 (protection of property), some applicants complain that they have been deprived of their assets on discriminatory grounds.

[Rostomashvili v. Georgia \(no. 13185/07\)](#)

The applicant, Paata Rostomashvili, is a Georgian national who was born in 1973 and lives in the village of Akhaldaba (Georgia).

The case concerns the applicant's allegation that he did not have a fair trial when he was found guilty of murder.

Mr Rostomashvili was found guilty of aggravated murder in May 2006. His conviction was based to a great extent on testimony by the victim's father, who said he had witnessed the killing.

Mr Rostomashvili appealed, arguing that there was no forensic evidence to connect him to the crime. He also questioned the testimony of the victim's father, pointing to contradictions between his statements and those of two other people, who had said that they themselves had told the father of the murder and that he had not at the time mentioned having witnessed it.

The Supreme Court upheld the first-instance verdict in September 2006. It found that the trial court had assessed the factual circumstances fully and objectively. It did not address any of Mr Rostomashvili's arguments, such as his submission that the trial court had failed to consider his statement that none of the evidence had implicated him in the crime and that the victim's father, who had implicated him, may not have been at the crime scene.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Rostomashvili complains about the conditions of his detention, such as a lack of space, and of a lack of medical care, including treatment for tuberculosis. He also complains under Article 6 § 1 (right to a fair trial) that the domestic courts failed to give sufficient reasons for their decision to convict him.

[Frezadou v. Greece \(no. 2683/12\)](#)

The applicant, Eleni Frezadou, is a Greek national who was born in 1962 and lives in Palaio Faliro (Greece). She has been a kindergarten teacher since 1983.

The case concerns her complaint about an appointment procedure for educational coordinators abroad in which she was a candidate.

In 2007 Ms Frezadou applied for the post of educational coordinator abroad. She was not selected and in 2008 challenged the relevant ministerial decisions before the administrative courts, complaining that the ranking of candidates had not been published and about the way in which she had been graded.

In 2009 and 2010 her lawyer submitted two requests to accelerate the proceedings, arguing that an educational coordinator's term of appointment lasted two years and that the contested administrative act would soon expire.

However, after five adjournments, the courts discontinued the proceedings in 2011 because they considered that Ms Frezadou did not have any special legal interest in pursuing her application because the administrative act had expired.

Relying on Article 6 § 1 (access to court), Ms Frezadou alleges that the domestic courts' failure to consider her application for annulment prevented her from having a judgment on the merits of her case.

[Malliakou and Others v. Greece \(no. 78005/11\)](#)

The applicants are 11 Greek nationals who were born between 1932 and 1974, and live in Amfissa, Itea, Nea Smyrni, and Monastira Doridos in Greece.

The case concerns the alleged loss of property rights to land where they had a quarry.

The applicants or their predecessors obtained shares of a plot of land either by purchase in 1980 and 1981 or inheritance in the late 1990s. Previously, under a ministerial decision of 1976, the area where the land was situated had been classified as being of archaeological interest as it had Mycenaean-era ruins.

The authorities in 1981 allowed a quarry on the land under certain conditions. In March 1991, the authorities classified the area in question as a "zone A region", where any alteration of the ground or any construction was banned. The applicants allege that their licence for the quarry, which operated until 1993, was revoked owing to the classification of most of their land as a protected area.

The applicants began court proceedings for compensation for the restrictions placed on their land. However, the first-instance court held in 2002, among other things, that the primary purpose of the land was agricultural and that operating a quarry there had only been allowed under exceptional circumstances. The authorities had not put any restrictions on the use of the land for agricultural purposes and so their claim for compensation had to be rejected.

All the applicants apart from the seventh appealed, but the appeal court upheld the first-instance decision. The Supreme Court rejected an appeal on points of law by the six applicants in March 2011.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants allege that the revocation of their licence to exploit the quarry and the classification of most of their land as a protected area violated their property rights. Under Article 6 § 1 (right to a fair hearing within a

reasonable time), they complain about the length of the proceedings in their case and argue with reference to Article 13 (right to an effective remedy) that there was no effective remedy at the time for a length of proceedings complaint.

[Wcisło and Others v. Poland \(nos. 49725/11 and 79950/13\)](#)

The applicant in the first case is Krzysztof Wcisło, while the applicants in the second application are Elżbieta Cabaj, and Jerzy Cabaj. They are all Polish nationals and they were born in 1963, 1954, and 1957 respectively. They live in Świątniki Górne (Krzysztof Wcisło) and Garwolin (the Cabajs).

The cases concern lengthy administrative proceedings.

In June 2000 Mr Wcisło complained to the local district construction inspector about the addition of a floor and new roof on a building next to one he owned in Cracow as the work was partly supported by a wall in Mr Wcisło's building. The district construction inspector began proceedings against the neighbours the following month.

The case subsequently moved between the district inspector, the regional inspector, the mayor's office and the administrative courts. Orders have been issued to have the neighbours suspend work or carry out work to make the renovation comply with the building permit. They have also been asked to submit technical plans. The proceedings are still ongoing.

From May 2003 Mr Wcisło also complained about the length of the proceedings. Several new time-limits were set within the proceedings, the most recent being in June 2015 for a decision to have been made by August 2015.

The case of Mr and Mrs Cabaj began in 1996 when the Garwolin District Office decided to approve the division of some land, which led to the expropriation of property belonging to them. They sought compensation in proceedings which have involved the local city office, the mayor's office, the Mazowiecki governor's office and the administrative courts, and have led to various offers of compensation. The proceedings are still ongoing before the Supreme Administrative Court.

Mr and Mrs Cabaj also pursued length-of-proceedings complaints. In January 2017 the Supreme Administrative Court dismissed a complaint by them related to delays in an earlier cassation appeal.

Relying on Article 13 (right to an effective remedy) in conjunction with Article 6 § 1 (right to a fair hearing within a reasonable time), all the applicants complain that the domestic remedies for protracted administrative proceedings were ineffective in their cases.

They also complain under Article 6 § 1 (right to a fair hearing within a reasonable time) about the length of the proceedings themselves. They allege under Article 1 of Protocol No. 1 (protection of property) that the excessive length of the proceedings has violated their property rights.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Grigoryan and Others v. Armenia (no. 40864/06)

M.N. v. France (no. 51093/17)

Alasania and Bardavelidze v. Georgia (nos. 12611/08 and 25500/08)

Iliashvili v. Georgia (no. 22715/07)

Mladenov and Anagnostopoulos v. Greece (no. 73888/16)

Petropoulakou and Others v. Greece (no. 7090/12)

Fazekas v. Hungary (no. 74819/13)

Fodorné Tóth v. Hungary (no. 25264/14)

Jónás and Others v. Hungary (no. 76185/13 and 26 other applications)
Kocsi and Others v. Hungary (no. 7103/12 and 298 other applications)
Papp and Others v. Hungary (nos. 51966/14, 61171/14, 68096/14, 74318/14, 9069/15, 12085/15, and 12095/15)
Rajkai and Others v. Hungary (nos. 18203/14, 42558/14, 45763/14, 49247/14, 59015/14, 59989/14, 14937/15, and 20025/15)
Caridi and Others v. Italy (no. 3690/12 and 26 other applications)
Jevaišis v. Lithuania (no. 74485/13)
Dziwisz and Others v. Poland (no. 41232/16 and 83 other applications)
Rybczyński v. Poland (no. 8766/11)
Wrońscy v. Poland (no. 29506/09)
Alexuțan v. Romania (no. 20765/16)
Association Titu Maiorescu Independent University and Others v. Romania (no. 48950/09)
Bencău v. Romania (no. 17874/13)
Bonica v. Romania (no. 14902/15)
Bordei and Others v. Romania (nos. 15446/15, 16750/15, 17206/15, 17488/15, 18223/15, 18553/15, 19871/15, 21435/15, 21543/15, 24376/15, 24480/15, 24623/15, 25473/15, 25920/15, 26380/15, 32656/15, 33117/15, 34665/15, 35007/15, and 46212/15)
Chirică v. Romania (no. 61865/15)
Dincă v. Romania (no. 29432/16)
Drăghici and Others v. Romania (nos. 16073/15, 1870/16, 14573/16, 27220/16, 30047/16, 31863/16, and 51076/16)
Draghiș and Others v. Romania (nos. 51408/15, 3892/16, and 20445/16)
Marian v. Romania (no. 46720/16)
Matei and Badea v. Romania (nos. 30357/15 and 30411/15)
Nisipeanu and Others v. Romania (nos. 74952/14, 75569/14, 30279/15, 63235/16, and 63613/16)
Opra v. Romania (no. 27301/16)
Parnica and Others v. Romania (nos. 1883/16, 6055/16, 11060/16, 21216/16, 27217/16, 27228/16, 41941/16, and 53301/16)
Pătuleanu and Others v. Romania (nos. 22941/13, 38671/13, 55485/13, and 523/16)
Pîrvan v. Romania (no. 1869/16)
Rus v. Romania (no. 16474/16)
S.C. Vinalcool Argeș S.A. v. Romania (no. 7629/10)
The Socialist Alliance Party v. Romania (no. 47306/11)
Vadasz and Argint v. Romania (nos. 37094/15 and 19413/16)
Kulesh v. Russia (no. 45919/13)
Milaković v. Serbia (no. 19933/15)
Sakip v. ‘the former Yugoslav Republic of Macedonia’ (no. 79472/13)
Azyukovska v. Ukraine (no. 26293/18)
Garmash v. Ukraine (no. 74163/13)
Levchenko and Others v. Ukraine (nos. 6966/13, 24525/13, and 68764/13)
Oboronchuk v. Ukraine (no. 58378/17)
Pechenizkyy and Others v. Ukraine (nos. 63510/11, 35026/12, 48019/12, 65722/12, 71273/12, 74771/12, 21094/13, 24346/13, 29598/13, 34757/13, 37671/13, 39965/13, 47881/13, 52206/13, 55129/13, 63197/13, 66585/13, 70813/13, and 79383/13)
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Skrybka v. Ukraine (no. 68781/17)
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Verkhoglyad and Others v. Ukraine (nos. 66356/10, 72040/11, 33975/13, 42431/13, 47799/13, 22533/16, 24619/16, and 72379/17)

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Press contacts

echrpress@echr.coe.int | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

Patrick Lannin (tel: + 33 3 90 21 44 18)

Somi Nikol (tel: + 33 3 90 21 64 25)

The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.